

Rutuja Pathak vs Dhiraj Balkrishna Pathak on 26 April, 2022

Author: Nitin W. Sambre

Bench: Nitin W. Sambre

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IN THE HIGH COURT OF JUDICATURE AT BOMBAY

CIVIL APPELLATE JURISDICTION

MISC. CIVIL APPLICATION NO. 185 OF 2021

RUTUJA PATHAK

....A

V/s.

DHIRAJ BALKRISHNA PATHAK

.....

Ms. Seema Sarnaik a/w Sangeeta Salvi Advocate for the Applicant
Mr. Sugandh Deshmukh Advocate for Respondent

CORAM : NITIN W. SAMBRE, J.

DATE: APRIL 26, 2022.

P.C.:

1) Parties to the present Application are physically present

Court and are identified by their respective counsel.

2) Jointly through their counsel, duly signed consent terms are tendered by parties in the present Application which are also countersigned by their respective lawyers. It is claimed that dispute arising out of matrimonial discord is settled and Consent terms dated 26/04/2022 are drawn to that effect. As such, consent terms are taken on record and marked 'X' for identification.

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3) Parties hereto agree that they have duly signed the consent terms after understanding the contents therein and assure that they shall be conducting themselves in accordance with consent terms.

4) As such, present Application stands disposed of in view of terms of consent dated 26/04/2022.

5) Prayer of the respective parties for expediting the issuance of certified copy of consent terms with present order is allowed, so as to facilitate the parties to place the consent terms and copy of this order for disposal of pending proceedings.

6) In view of consent terms, if prayer is made for waiving the period of 6 months contemplated under Section 13(B) of Hindu Marriage Act, the Court below is requested to deal with the same sympathetically in the interest of justice, having regard to terms on which matter is settled inter-se between the parties.

[NITIN W. SAMBRE, J.]